



Sample report, fictional project

MiCA Readiness Review

Project Alba, a staking token preparing to market to EU users. Public materials reviewed against MiCA, AML, consumer and data protection rules.

Materials reviewed	Website (6 pages), white paper v0.9, terms of use, privacy notice, 14 posts on X, Telegram and Discord
Review date	29 September 2026
Reviewer	Arturo Ferrándiz Fernández, 402Scope Compliance
Nature	Regulatory analysis, not legal advice. Not a law firm.

Summary

Not ready to market to EU users yet. Three fixes block the launch.

All three are in marketing copy and can be fixed in about a week. The custody question needs a decision before the white paper is notified.

Area	Status	Main point
Marketing and claims	● Fix before launch	Fixed yield promised; required statement missing
White paper	● Fix before notification	Risk section generic; published before notification
Classification	● No change	Other crypto-asset under MiCA Title II
Service licensing	● Decision needed	Team wallet holds staked tokens for users
AML and Travel Rule	● No change	Screening and geo-blocking in place
Stablecoins and payments	● Not applicable	No stablecoin or fiat flows
Terms and consumers	● Fix before launch	No governing law or complaint route
Privacy	● Fix before launch	Wallet addresses and analytics not covered

Three priorities

- 1 **Remove the fixed-yield promise** from the staking page and every social post that repeats it (findings H1 and M6).
- 2 **Add the risk statement and the MiCA disclaimer** next to every call to action (H2, H3).
- 3 **Decide who holds staked tokens.** If the team wallet keeps custody for users, use an authorised provider or assess authorisation (M3).

Findings

Ranked by level. Each finding cites the rule behind it and the change to make.

Ref	Level	Finding	Rule	What to change
H1	High	Staking page promises a guaranteed 18% APY	MiCA Art. 7	Describe rewards as variable; remove guarantees
H2	High	No risk statement near the "Stake now" button	MiCA Art. 7	Add a plain risk statement above the button
H3	High	Marketing lacks the statement that no authority has reviewed it	MiCA Art. 7	Add the required statement to website and posts
M1	Medium	White paper v0.9 is public before notification	MiCA Art. 8	Unpublish until notified, or label as draft not for marketing
M2	Medium	Risk section lists generic crypto risks only	MiCA Art. 6	Add project risks: slashing, smart contract, lock-up
M3	Medium	Team wallet holds staked tokens on behalf of users	MiCA Art. 59	Use an authorised custodian or assess CASP authorisation
M4	Medium	Terms name no governing law or complaint route	Directive 93/13/EEC	Add governing law, complaints email and response time
M5	Medium	Privacy notice omits wallet addresses and analytics	GDPR Art. 13	List purposes, legal basis, retention and processors
M6	Medium	Six social posts repeat the fixed-yield claim	MiCA Art. 7	Edit or delete; pin a corrected post
O1	OK	Sanctions screening and geo-blocking at onboarding	Reg. (EU) 2023/1113	No change needed

Redlines

Suggested wording for the high findings. Deleted text in red, new text in blue.

H1 • Staking page, hero

MiCA Art. 7

Lock your ALBA for 90 days and ~~earn a guaranteed 18% APY~~ receive staking rewards.
Rewards vary with network activity and can fall to zero.

A guaranteed return is not fair, clear and not misleading when rewards depend on the network. The same claim appears in six posts (M6).

H2 • Staking page, above "Stake now"

MiCA Art. 7

Staking locks your tokens for 90 days. You can lose all the value of the tokens you stake, and you may not be able to sell them during the lock-up.

The risk must be visible where the decision is made, not only in the white paper.

H3 • Website footer and every marketing post

MiCA Art. 7

This crypto-asset marketing communication has not been reviewed or approved by any competent authority in any Member State of the European Union. The offeror of the crypto-asset is solely responsible for its content.

MiCA requires this statement in marketing communications for crypto-assets other than ARTs and EMTs.

Next steps

When	Action	Findings
This week	Edit staking page, footer and social posts	H1, H2, H3, M6
Before notification	Decide custody model; rewrite white paper risk section	M1, M2, M3
Before launch	Update terms and privacy notice	M4, M5
After launch	Review every new campaign against MiCA Art. 7 before publishing	All marketing

Scope and limitations

This review covers the public materials listed on the cover, as they stood on the review date, against EU law and Spanish rules where relevant. Jurisdictions outside the EU are flagged, not analysed. It is a regulatory analysis, not legal advice or a legal opinion, and it does not assess the technical security of smart contracts, investment merits or tax treatment.

This is a sample report about a fictional project, written to show the format of a real review.

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